

26CV00309 William C Turner, III vs Svetlana Leonidovna Dayal et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-08-17

Motion: CMC; Demurrers (2); Motions to Compel (4); Motion to Disqualify Counsel; Motion for Leave; Motion for Protective Order; Motion to Quash; Motions to Strike (2)

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Tentative Ruling: William C Turner, III vs Svetlana Leonidovna Dayal et al

Case Number

26CV00309

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/17/2026 - 10:00

Nature of Proceedings

CMC; Demurrers (2); Motions to Compel (4); Motion to Disqualify Counsel; Motion for Leave; Motion for Protective Order; Motion to Quash; Motions to Strike (2)

Tentative Ruling

William Turner III v. Svetlana Leonidovna Dayal, et al.

Case No. 26CV00309

Hearing Date: August 17, 2026

HEARING: (1) Motion by Defendant Svetlana Leonidovna Dayal to Disqualify Attorney Geoff Conner Newlan as Counsel for Plaintiff William C. Turner III

(2) Demurrer by Defendant Svetlana Leonidovna Dayal to First Amended Complaint

(3) Motion by Svetlana Leonidovna Dayal for Protective Order

(4) Motion by Defendant Svetlana Leonidovna Dayal to Quash Subpoena Re DMV Records

(5) Motion by Defendant Svetlana Leonidovna Dayal to Compel Re Responses to Special Interrogatories, Form Interrogatories, and Requests for Production, Sets One

(6) Demurrer by Defendant Voigt Inc., dba Smitty's Towing West & Storage to First Amended Complaint

(7) Motion by Defendant Voigt Inc., dba Smitty's Towing West & Storage to Strike Re First Amended Complaint

(8) Motion by Plaintiff William Turner III to Compel Re Discovery Responses, Sets Two and Three

(9) Motion by Plaintiff William Turner III to Compel Production of DMV Business Records

(10) Motion by Plaintiff William Turner III to Compel Re Requests for Admission, Set One

(11) Motion by Plaintiff William Turner III to Strike Re Demurrer

(12) Motion by Plaintiff William Turner III for Leave to File Second Amended Complaint

ATTORNEYS: For Plaintiff William Turner III: Geoff Conner Newlan

For Defendant Svetlana Leonidovna Dayal: Self-Represented

For Defendant Voigt Inc., dba Smitty's Towing West & Storage: Cristi Michelson Vasquez

TENTATIVE RULING: For all reasons stated herein, the motion by defendant Svetlana Leonidovna Dayal to disqualify Geoff Conner Newlan as counsel for plaintiff William C. Turner III is granted. The additional eleven motions set for this hearing are continued to December 21, 2026, at 10:00 a.m. in this department. Any discovery motions must comply with Code of Civil Procedure section 2016.040 and Rule 3.1345 of the Rules of Court. On or before December 7, 2026, the parties shall file a joint statement indicating which of these motions are still at issue.

Background:

On January 13, 2026, plaintiff William C. Turner III (Turner) filed a complaint against defendant Svetlana Leonidovna Dayal (Dayal), asserting five causes of action for (1) ejectment, (2) declaratory relief, (3) conversion, (4) waste/trespass to chattels, and (5) fraud and deceit.

On January 20, 2026, Turner filed a first amended complaint (FAC) naming additional defendant, Voigt, Inc., dba Smitty's Towing West & Storage (Smitty's). The FAC sets forth the same five causes of action against "all defendants" and adds a sixth cause of action, against Smitty's only, for negligence.

As alleged in the FAC:

Turner is the sole owner of real property (Property) at 7303 Bassano Drive in Goleta. (FAC, ¶¶ 1, 7.) Dayal resides at the Property without lease agreement or payment of rent and without Turner's consent. (FAC, ¶ 1.) Dayal was originally a guest and licensee residing at the Property but her status as guest and licensee has been revoked. (FAC, ¶ 4.) Turner has demanded that Dayal vacate the Property but Dayal has refused. (FAC, ¶ 8.) Dayal has engaged in "hoarding" behavior in common areas, restricted Turner's use of his own utilities, and excluded Turner from certain areas of the Property. (FAC, ¶ 9.)

Dayal claims one-half ownership interest in the Property. (FAC, ¶ 12(c).) Turner disputes Dayal's claimed ownership interest. (FAC, ¶ 12(d).) Turner admits that he borrowed money from Dayal from time-to-time to make improvements to the Property but such funds were repaid with interest. (FAC, ¶ 12(b).) The legal title and mortgage for the Property are recorded solely in the name of Turner. (FAC, ¶ 12(a).)

Turner seeks a judicial declaration that Turner is the sole owner of the Property in fee simple. (FAC, ¶ 17(a).) Turner seeks a judgment of ejectment, ordering the removal of Dayal from the Property. (FAC, p. 6, ll. 22-24.) Turner seeks damages for lost rent in the amount of \$150 per day from the date this action was filed until possession is restored. (FAC, ¶ 10 & p. 7, ll. 18-19.)

The FAC also alleges a controversy over the use and possession of a 2007 Chrysler Aspen vehicle (the Aspen). (FAC, ¶ 13.) Dayal operated the Aspen for months without a valid driver's license. (FAC, ¶ 14(a).) Turner is at financial risk to third parties under the theory of negligent entrustment. (FAC, ¶ 14(c).) Dayal claims to possess a contract granting Dayal lifetime use of the Aspen. (FAC, ¶ 15.)

On January 14, 2026, Smitty's, at the direction of Dayal, towed the Aspen from the private driveway at the Property. (FAC, ¶ 21.) Dayal and Smitty's refuse to return the Aspen. (FAC, ¶ 22.) Dayal also refuses to return the spare keys for the Aspen. (FAC, ¶ 20.) The Aspen needs significant maintenance, has a dangerous gas leak, and has failed a smog test. (FAC, ¶ 25.) Turner seeks damages against Dayal and Smitty's for the value or loss of use of the Aspen. (FAC, p. 7, ll. 10-11.)

On March 11, 2026, the court issued a preliminary injunction that ordered in part, "Dayal shall not drive or otherwise operate the [Aspen] pending disposition of this action or further order of the court." (Order Granting Preliminary Injunction, p. 7, ll. 17-19.) The court also ordered that an undertaking be filed by Turner in the amount of \$1,000 on or before March 16, 2026. (Id. at p. 1, ll. 22-23, p. 8, ll. 4-6.) The court's docket does not reflect the undertaking on or before March 16.

The FAC also alleges a dispute over the unauthorized use of Turner's Audi vehicle (the Audi). (FAC, ¶ 24.) On January 8, 2026, Dayal operated the Audi and negligently caused a collision with a third party. (Ibid.) Turner obtained an estimate to repair the damages of \$7,263.44. (FAC, ¶ 24(a).) There is no insurance coverage. (FAC, ¶ 24(b).) Turner seeks recovery for the cost of repairs to the Audi. (FAC, p. 7, ll. 6-7.)

In addition, the FAC alleges a dispute over a \$20,000 commission (Commission) for a real estate transaction. (FAC, ¶ 28.) Turner authorized the Commission to be directed to Dayal for a kitchen remodel fund. (Ibid.) Dayal represented to Turner that these funds were being used to purchase materials and labor for the kitchen remodel. (FAC, ¶ 29.) However, only approximately \$4,000 was used for the kitchen and Dayal used the remaining \$16,000 for her personal use. (FAC, ¶ 30.)

On April 14, 2026, Dayal filed a verified cross-complaint (CC) against Turner setting forth six causes of action for (1) partition by sale, (2) declaratory relief, (3) quiet title, (4) constructive trust, (5) accounting/contribution/reimbursement, and (6) breach

of implied-in-fact contract.

As alleged in the CC:

Turner and Dayal began a long term relationship in 2011. (CC, ¶ 7.) The parties began cohabitating in 2013. (FAC, ¶ 8.) Although not legally married, Dayal and Turner functioned as partners in a long term personal and economic relationship. (CC, ¶¶ 7-9.)

In September 2016, the Property was acquired with record title initially placed in the name of Turner. (CC, ¶ 11.) The parties understood they were acquiring the Property jointly by way of pooled monies, efforts, labor, strategy, and mutual contribution. (CC, ¶ 12.)

On November 16, 2018, Turner executed a grant deed (Grant Deed) conveying to Dayal a 50 percent undivided interest in the Property. (CC, ¶¶ 13-14 & Ex. A.) Although not recorded, the Grant Deed is alleged to be enforceable between the parties and those with notice. (CC, ¶ 15.)

On March 29, 2019, Turner and Dayal entered into a written contract (Bassano Contract) which provides that the parties had the intention, understanding, and agreement to pool their moneys and efforts, jointly and equally, to acquire the Property. (CC, ¶¶ 16-22 & Ex. B.) The parties would hold the Property jointly subject to buyout and sales procedures set forth in the Bassano Contract. (Ibid.) The Bassano Contract was prepared by attorney Geoff Newlan (Newlan), counsel of record for Turner. (CC, ¶ 21.)

On November 23, 2021, Dayal entered into a loan on behalf of Turner in the amount of \$22,444.45 for a 2010 BMW X6 (the BMW). (CC, ¶ 26.) The understanding was that Dayal would extend her credit for the purchase of the BMW but Turner would make the payments. (CC, ¶ 27.) Turner initially made some of the payments but got behind on payments as of 2023. (CC, ¶ 28.) Dayal was left carrying the financial and credit burden. (CC, ¶ 29.)

Following the breakdown of the parties' relationship in June 2025, Turner engaged in a pattern of exclusion and unilateral conduct designed to deny or minimize Dayal's ownership, financial, and economic rights, including treating shared or jointly derived interests as his alone and attempting to reduce Dayal to the status of a mere guest, roommate, or non-owner. (CC, ¶ 34.)

Dayal alleges she is, at minimum, the owner of a 50 percent undivided interest in the Property based on the Grant Deed, the Bassano Contract, and other circumstances. (CC, ¶ 37.) Dayal seeks partition of the Property according to the parties' respective interests, with any further accounting adjustments, reimbursements, credits, or offsets to be determined thereafter according to proof and equity. (CC, ¶¶ 40-41.)

Dayal also seeks to enforce an implied contract between the parties whereby Turner would serve principally as cash provider and executor of certain transactions, while Dayal would contribute labor, services, management, strategy, domestic support, rental management, property-improvement work, pet care, financial contributions, and extension of credit to the parties' shared enterprise. (CC, ¶¶ 66-69.) Under that implied agreement, the parties would share equally in the fruits of their joint efforts, including real property, value created in real property, acquired assets, and benefits derived from the enterprise, as well as obligations or burdens undertaken by one party for the benefit of the other. (Ibid.)

On June 12, 2026, Dayal filed this motion to disqualify Turner's counsel of record, attorney Newlan. The motion argues that attorney Newlan has a conflict of interest, is a material witness in this action, and should not under these circumstances be permitted to act as an advocate and a witness. Turner opposes Dayal's motion, arguing that attorney Newlan never acted as an attorney for Dayal. Moreover, as argued by Turner, attorney Newlan is not a necessary witness and Dayal has implicitly waived these issues by way of her litigation conduct.

There are eleven additional motions filed by the parties set for this August 17 hearing. Dayal also filed a motion to compel, a motion for protective order, a motion to quash a third party subpoena, and a demurrer. Smitty's filed a demurrer and motion to strike in response to the FAC. Turner filed three motions to compel, a motion for leave to amend the FAC, and a motion to strike Dayal's demurrer.

Analysis:

(1) The Advocate-Witness Rule

"A trial court's authority to disqualify an attorney derives from its inherent power, codified at Code of Civil Procedure section 128, subdivision (a)(5), to control the conduct of its ministerial officers and of all other persons connected with its proceedings in furtherance of justice. [Citation.] Disqualification may be ordered as a prophylactic measure against a prospective ethical violation likely to have a substantial continuing effect on future proceedings." (Doe v. Yim (2020) 55 Cal.App.5th 573, 581 (Yim).)

"A lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness unless:

"(1) the lawyer's testimony relates to an uncontested issue or matter;

"(2) the lawyer's testimony relates to the nature and value of legal services rendered in the case; or

"(3) the lawyer has obtained informed written consent from the client. If the lawyer represents the People or a governmental entity, the consent shall be obtained from the head of the office or a designee of the head of the office by which the lawyer is employed." (Rules Prof. Conduct, rule 3.7(a).)

"The 'advocate-witness rule,' which prohibits an attorney from acting both as an advocate and a witness in the same proceeding, has long been a tenet of ethics in the American legal system, and traces its roots back to Roman Law. [Citation.] ... 'Notwithstanding a client's informed written consent, courts retain discretion to take action, up to and including disqualification of a lawyer who seeks to both testify and serve as an advocate, to protect the trier of fact from being misled or the opposing party from being prejudiced.' [Citations.] In other words, a court retains discretion to disqualify a likely advocate-witness as counsel, notwithstanding client consent, where there is 'a convincing demonstration of detriment to the opponent or injury to the integrity of the judicial process.' " (Yim, supra, 55 Cal.App.5th at pp. 581-582.) The burden is on the moving party seeking disqualification. (See Evid. Code, § 500.)

"[T]o effectuate the rule's purpose of avoiding fact finder confusion, we interpret the rule's use of the term 'trial' to encompass a pretrial evidentiary hearing at which counsel is likely to testify. [Citation.] Further, ... most courts recognize that an attorney who intends to testify at trial may not participate in 'any pretrial activities which carry the risk of revealing the attorney's dual role to the jury.' [Citation.] In particular, a testifying attorney should not take or defend depositions." (Yim, supra, 55 Cal.App.5th at p. 583.)

"In exercising its discretion to disqualify counsel under the advocate-witness rule, a court must consider: (1) 'whether counsel's testimony is, in fact, genuinely needed'; (2) 'the possibility [opposing] counsel is using the motion to disqualify for purely tactical reasons'; and (3) 'the combined effects of the strong interest parties have in representation by counsel of their choice, and in avoiding the duplicate expense and time-consuming effort involved in replacing counsel already familiar with the case.' " (Yim, supra, 55 Cal.App.5th at p. 583.)

(2) The March 2019 Meeting

Dayal and Turner submit evidence that Turner, Dayal, and attorney Newlan attended a meeting around March 2019 pertaining to the ownership of the Property. (Declaration of Svetlana Leonidovna Dayal [Dayal Decl.], ¶¶ 9-21; Declaration of Geoff Newlan [Newlan Decl.], ¶ 4; Declaration of William C. Turner III [Turner Decl.], ¶¶ 4-6.) Dayal states that this meeting was not adversarial pertaining to any anticipated litigation, Turner indicates the parties were evaluating claims or demands by Dayal, and attorney Newlan describes the meeting as a brief informational meeting with the parties. (Dayal Decl., ¶¶ 9-21; Newlan Decl., ¶ 4; Turner Decl., ¶ 4.) Attorney Newlan states that he agreed at the request of Turner that Newlan would “participate in a single, brief informational meeting with the parties.” (Newlan Decl., ¶ 4.) According to Turner, “[t]he sole purpose of this meeting was for Mr. Newlan to listen to Defendant Dayal’s baseline property demands regarding 7303 Bassano Drive and organize them into a written layout, so that [Turner] could evaluate them.” (Turner Decl., ¶ 4.) Dayal states she “understood that [attorney Newlan] was aware of and involved with the parties’ joint property arrangement and was not acting as an adversary against [her] concerning [her] ownership interest.” (Dayal Decl., ¶ 5.)

(3) The March 1, 2019 Email

Dayal presents evidence of an email dated March 1, 2019 (March 1 Email), from attorney Newlan to Turner, which Turner then forwarded to Dayal, stating in part:

“William, here are the terms of the agreement that we have been working on. It is designed to document Svetlana’s ownership interest without the un-necessary layer of a trust. The ownership and sale terms would be controlled by this agreement.

“Let’s find a time next week to get together to finalize the terms, so the contract can be finalized for signatures. [¶] 1. Contract (without trust layer) [¶] 2. Recitals are basically the same [¶] 3. Continue to hold and ownership rights controlled by contract [¶] 4. Either one (William or Svetlana) can give the other 90 notice that they want to sell the property. [¶] 5. If it is Svetlana then it will happen like this: [¶] a. William will be able to put off the date the property is listed for sale by tendering \$20,000 toward the equal division within 90 days, which gives him 12 months from the date of notice of sale to refinance or otherwise give Svetlana the balance of her one half interest net of mortgage and other secured obligations on the property. [¶] b. The value of the property will be based on an average of appraisals from licensed brokers or certified appraisers, each person to pick and pay for one within 30 days of the \$20,000 payment. [¶] c. If William cannot buy Svetlana out after this 12 month period, the house will be listed and sold, with the net sale proceeds being divided, keeping in mind that William already advanced the \$20,000....” (Dayal Decl., ¶¶ 19-21, Ex. C.)

(4) The March 29, 2019, Bassano Contract

The Bassano Contract provides as follows:

“CONTRACT RE: 7303 BASSANO DRIVE

“This agreement is entered into between William C. Turner III and Svetlana Dayal.

“Whereas, William and Svetlana had the intention, understanding, and agreement to pool their monies and efforts to jointly and equally acquire certain residential real property commonly known as 7303 Bassano Drive, Goleta California;

“Whereas, William and Svetlana successfully did acquire the Bassano Property, initially putting bare legal title in the name of ‘William C. Turner III,’; and

“Whereas, William and Svetlana desire to work out a method of selling the property.

"William and Svetlana do hereby agree and declare as follows:

1. William and Svetlana will continue to hold the Bassano Property jointly

2. In the event that either one of them (William or Svetlana) gives the other 90 notice that they want to sell the Property, the following will happen prior to the sale of the Property:

A. The person receiving this Notice of desire to sell will be able to put off the date the property is listed for sale by tendering \$20,000 toward the equal division of the value of the Property within 90 days.

B. If the \$20,000 is timely paid, that gives the paying person 12 months from the date of notice of sale to refinance or otherwise pay the balance of one-half (#4) interest net of mortgage and other secured obligations on the property.

C. To establish value of the property, upon which the payment will be calculated, will be based on an average of appraisals from licensed brokers or certified appraisers, each person to pick and pay for one within 30 days of the \$20,000 payment.

D. In the event that the person receiving Notice is unable to buy the other party out after this 12 month period, the Bassano Property will be listed and sold, with the net sale proceeds being divided, giving credit for the payment of the \$20,000 paid (see 2.A. above).

"This agreement is entered into on March 29, 2019." (Dayal Decl., ¶¶ 6-8, Ex. A.)

Dayal presents evidence that, on March 26, 2019, attorney Newlan transmitted the Bassano Contract draft to Turner by email, who in turn forwarded this email to Dayal. The email read in part, "William, contract draft is attached." (Dayal Decl., ¶¶ 19-21, Ex. C.)

Turner admits forwarding this email to Dayal. (Turner Decl., ¶ 7.) However, Turner states that upon reviewing the Bassano Contract draft on March 26, 2019, Turner "completely rejected its terms and determined that [he] would not execute it." (Turner Decl., ¶ 6.) Turner states he "subsequently forwarded a copy of that draft email to Defendant Dayal for the sole purpose of showing her that a document had been completed." (Turner Decl., ¶ 7.)

Dayal presents evidence that Turner signed the Bassano Contract. (Dayal Decl., ¶¶ 6-8, Ex. A.) The Bassano Contract appears to be notarized by notary public Adan Rocha. (Ibid.) The notary acknowledgment is dated April 11, 2019. (Ibid.) The notary acknowledgement references Dayal and Turner, but does not reference a description of the Bassano Contract. (Ibid.) As noted, Turner denies that he signed the Bassano Contract despite his apparent signature and an apparent witness notary. (Turner Decl., ¶¶ 6-7.) This appears to be a key factual dispute in the case. Turner does not state in his declaration or his opposition papers whether he signed the earlier Grant Deed, which also appears to be signed by Turner and notarized by notary public Adan Roca. (See CC, Ex. A; Dayal, Decl., Ex. B.)

(5) Application of the Advocate Witness Rule

Turner denies signing the March 29, 2019 Bassano Contract (ostensibly notarized on April 11) and states that he completely rejected its terms. (Turner Decl., ¶¶ 6-7.) Yet, the March 1 Email between Turner and attorney Newlan, which was forwarded by Turner to Dayal, appears to indicate that this agreement and signatures were anticipated in short order. (Dayal Decl., ¶¶ 19-21, Ex. C.) The March 1 Email describes what appears to be a draft summary of the Bassano Contract and states in part, "[l]et's find a time next week to get together to finalize the terms, so the contract can be finalized for signatures." (Ibid.) Dayal presents evidence that the March 29, 2019, Bassano Contract was signed as previously anticipated in the March 1 Email. (Dayal Decl., Ex. A.)

Based on these circumstances, it appears that attorney Newlan's testimony is genuinely needed at trial pertaining to the March 1 Email that he drafted. The March 1 Email appears highly relevant to a key disputed issue in the case. It appears attorney Newlan had the understanding at the time of the March 1 Email that the parties would be signing a contract similar to the Bassano Contract. It is likely that any protection pertaining to attorney-client communications, if any, would have been waived at least in part when the March 1 Email was forwarded to Dayal and then filed openly in these proceedings by Dayal without objection.

On August 3, 2026, Dayal filed a case management statement indicating that she requests a jury trial in this action. (Dayal CMC Stat., Aug. 2, 2026, ¶ 5.) The FAC seeks damages against Dayal for rent in the amount of \$150 per day from the date this action was filed until possession is restored, as well as monetary damages for alleged fraud and issues pertaining to the vehicles. (FAC, ¶¶ 10, 18-19, 27-31 & p. 7, ll. 5-21.) Dayal's CC seeks damages from Turner for breach of an implied contract. (CC, ¶¶ 66-77.)

"[T]he California Constitution affords civil litigants the right to a jury trial in suits seeking to recover damages for breach of contract. [Citation.] This jury right extends to questions of fact, which includes the 'assessment of damages.' " (Monster, LLC v. Superior Court (2017) 12 Cal.App.5th 1214, 1230.) It appears without deciding that Dayal may have, at least in part, a right to jury trial on certain issues in this case. "In such a situation, if a legal claim is joined with an equitable claim, the right to jury trial on the legal claim, including all issues common to both claims, remains intact. The right cannot be abridged by characterizing the legal claim as 'incidental' to the equitable relief sought." (Mendoza v. Ruesga (2008) 169 Cal.App.4th 270, 284-285.)

Dayal's liability and ability to recover on an implied contract theory may turn in part on a jury's determination of whether Turner signed the Bassano Contract, or as, Turner argues, he totally rejected it. The court finds that if attorney Newlan were permitted to act as counsel for Turner at trial while also testifying on this material disputed issue, a jury could be confused. (See Yim, supra, 55 Cal.App.5th at pp. 582-583.) A jury might give improper weight to the testimony of an attorney representing Turner against a self-represented party, or might not understand the difference between Turner's distinct role as an advocate and a fact witness. (See *ibid.*)

Moreover, Turner may raise attorney Newlan's status as Turner's counsel in opposition to important discovery to which Dayal is likely entitled. (See Code Civ. Proc., § 2017.010.) Turner has argued in his opposition that attorney "Newlan's testimony is entirely unnecessary," but attorney Newlan's March 1 Email and testimony about these issues are circumstantial evidence pertaining to a key disputed issue. (Opp., p. 8, l. 20.) Dayal could suffer unfair prejudice under these circumstances. Dayal should not be prejudiced in discovery or by the availability of key witnesses at trial by Turner's choice of counsel under these circumstances.

Turner argues that he should be entitled to his choice of counsel and that there will be financial implications if new counsel is required. But here, Turner and attorney Newlan knew or should have known from the outset of this litigation that attorney Newlan would be an important fact witness to the Bassano Contract and that attorney Newlan would likely be sought as a witness in this action. The court does not find that Dayal's motion was filed merely for tactical reasons. The court finds that the fundamental fairness of the proceeding outweighs Turner's interests in his preferred choice of counsel. To mitigate any possible prejudice to Turner, the court will continue the other pending motions for a sufficient time for new counsel to get up to speed.

Based on the foregoing, the court finds that Dayal has made "a convincing demonstration of detriment to the opponent or injury to the integrity of the judicial process." (Yim, supra, 55 Cal.App.5th at pp. 581-582.)

(6) Waiver

Turner argues that Dayal implicitly waived her right to seek disqualification. "[S]ome courts that have held that disqualification of counsel cannot be waived even when the motion is brought after an extremely long passage of time. [Citations.] The rationale of these cases is that ethical rules serve a public interest, which precludes representation by a lawyer who should

be disqualified. California, however, is not one of the jurisdictions adhering to this view. [Citation.] In fact, the majority view appears to be that attorney disqualification can be impliedly waived by failing to bring the motion in a timely manner.” (Liberty National Enterprises, L.P. v. Chicago Title Ins. Co. (2011) 194 Cal.App.4th 839, 844.)

“It appears that, at least in California, the delay has to be extreme or unreasonable before it operates as a waiver. [Citations.] It has been held that when the party opposing the motion has made a prima facie showing of unreasonable delay causing prejudice, disqualification should not be ordered, and the burden shifts to the moving party to justify the delay. [Citation.] It has also been held that the prejudice to the opponent must be extreme. [Citation.]” (Liberty National, supra, 194 Cal.App.4th at p. 845.)

Here, this action was filed on January 13, 2026. Dayal demanded voluntary withdrawal by attorney Newlan on April 30, 2026. (Dayal Decl., Ex. F.) Dayal notes in reply that during May and June 2026 the parties were litigating issues pertaining to domestic violence restraining order proceedings and related contempt proceedings. The motion for disqualification was filed on June 12, 2026. The court has not yet held a case management conference. The pleadings have not yet been finalized. There is no trial date. The court does not find these circumstances constitute extreme delay. The elements of implied waiver have not been established.

For all these reasons, the court will grant the motion to disqualify attorney Newlan on the basis of the advocate-witness rule. (Yim, supra, 55 Cal.App.5th at pp. 581-582.)

(7) Request for Disqualification Based on a Conflict of Interest

“A lawyer shall not, without informed written consent* from each affected client ... represent a client if there is a significant risk the lawyer’s representation of the client will be materially limited by the lawyer’s responsibilities to or relationships with another client, a former client or a third person,* or by the lawyer’s own interests.” (Rules Prof. Conduct, rule 1.7(b).)

“A lawyer who has formerly represented a client in a matter shall not thereafter represent another person in the same or a substantially related matter in which that person’s* interests are materially adverse to the interests of the former client unless the former client gives informed written consent.**” (Rules Prof. Conduct, rule 1.9(a).)

“An attorney-client relationship is not created by the unilateral declaration of one party to the relationship. [Citation.] Rather, the relationship can only be created by contract, express or implied.” (Koo v. Rubio’s Restaurants, Inc. (2003) 109 Cal.App.4th 719, 729.) “[A] plaintiff cannot unilaterally establish an attorney-client relationship, and its hindsight ‘beliefs’ that such a relationship existed are thus legally irrelevant. [Citation.] Instead, it is the intent and conduct of the parties that controls the question as to whether an attorney-client relationship has been created.” (De Meo v. Cooley LLP (2025) 115 Cal.App.5th 17, 33 (De Meo).)

Dayal has not proven that she had an attorney-client relationship with attorney Newlan or ever communicated with Newlan in the context of a potential attorney-client relationship. Dayal does not state in her declaration that she believed Newlan was ever her attorney or that she ever met with Newlan for purposes of evaluating his services as an attorney. Dayal provides no evidence that she provided confidential information to attorney Newlan.

Attorney Newlan provides evidence indicating that no such attorney-client relationship or potential relationship existed. Newlan states that he “never entered into a retainer with ... Dayal, never billed her, and never agreed to act as her attorney or advisor. [According to Newlan, he] had zero communication with [Dayal] prior to or following this single [2019] meeting.” (Newlan Decl., ¶ 4.) The social contact with attorney Newlan as set forth in Dayal’s declaration is insufficient to establish an attorney-client relationship. Dayal has not carried her burden to demonstrate a conflict of interest based on an actual or prospective attorney-client relationship with attorney Newlan. (See De Meo, supra, 115 Cal.App.5th at p. 33; Rules Prof. Conduct, rules 1.7(b), 1.9(a).)

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US